

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Abigail Shuster	Team: Squad #15	CCRB Case #: 201600493	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/13/2016 4:20 PM	Location of Incident: 97th Avenue and 93rd Street and the 102nd Precinct	Precinct: 102	18 Mo. SOL 7/13/2017	EO SOL 7/13/2017	
Date/Time CV Reported Wed, 01/13/2016 5:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/20/2016 11:13 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Worrell	01718	949811	102 PCT
2. POM Alex Cruz	01608	940038	102 PCT
3. POM Erik Contreras	04704	948808	102 PCT
4. SGT Joseph Demarco	01347	911645	102 PCT
5. An officer			102 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Alex Cruz	Discourtesy: At 97th Avenue and 93rd Street in Queens, Police Officer Alex Cruz spoke discourteously to § 87(2)(b) and § 87(2)(b)	
B.SGT Joseph Demarco	Discourtesy: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco spoke discourteously to § 87(2)(b) and § 87(2)(b)	
C.POM Erik Contreras	Discourtesy: At 97th Avenue and 93rd Street in Queens, Police Officer Erik Contreras spoke discourteously to § 87(2)(b) and § 87(2)(b)	
D.POM Alex Cruz	Abuse: At 97th Avenue and 93rd Street in Queens, Police Officer Alex Cruz frisked § 87(2)(b)	
E.POM Alex Cruz	Abuse: At 97th Avenue and 93rd Street in Queens, Police Officer Alex Cruz frisked § 87(2)(b)	
F. An officer	Abuse: At 97th Avenue and 93rd Street in Queens, an officer frisked § 87(2)(b)	
G. An officer	Abuse: At 97th Avenue and 93rd Street in Queens, an officer searched § 87(2)(b)	
H.SGT Joseph Demarco	Abuse: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco frisked § 87(2)(b)	
I.SGT Joseph Demarco	Abuse: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco searched § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
J.SGT Joseph Demarco	Abuse: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco searched § 87(2)(b)	
K.SGT Joseph Demarco	Abuse: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco refused to provide his name and shield number to § 87(2)(b)	
L.POM Michael Worrell	Abuse: At the 102nd Precinct stationhouse in Queens, Police Officer Michael Worrell did not process § 87(2)(b)'s complaint regarding officers.	

Case Summary

On January 13, 2016, § 87(2)(b) filed this complaint with IAB Command Center by phone, generating original IAB log 2016-01425. This case was received by the CCRB on January 20, 2016, under IAB log 16-01799.

At 4:20 p.m. on January 13, 2016, § 87(2)(b) § 87(2)(b) daughter § 87(2)(b) was hanging out in the playground of Elizabeth Blackwell Middle School in Queens with her friends § 87(2)(b) and § 87(2)(b). They were approached by Sgt. Joseph Demarco, PO Alex Cruz, and PO Erik Contreras of the 102nd Precinct, each of whom allegedly approached the group and said, “Get the fuck up; give me your fucking IDs!” (**Allegations A, B, and C**). After providing their identifications, PO Cruz frisked § 87(2)(b) and § 87(2)(b) (**Allegations D and E**). An officer allegedly frisked and searched § 87(2)(b) (**Allegations F and G**). § 87(2)(b) alleged that she was frisked and searched at this time by Sgt. Demarco (**Allegations H and I**), who also allegedly searched § 87(2)(b) s book bag (**Allegation J**).

After being released without being summonsed or arrested, § 87(2)(b) returned to Sgt. Demarco and asked him for his name, shield number, and command. Sgt. Demarco allegedly replied that he was “part of” the 102nd Precinct, but did not provide his name or shield number (**Allegation K**).

§ 87(2)(b) and § 87(2)(b) each received summonses for § 87(2)(b).

Minutes after this incident, § 87(2)(b) called her mother § 87(2)(b) who picked her up in her car and drove to the 102nd Precinct stationhouse along with her stepbrother § 87(2)(b). At the stationhouse, § 87(2)(b) spoke to PO Michael Worrell, who was assigned as the telephone switchboard operator, and he allegedly refused to process her complaint regarding officers by telling her she needed to fight it in court (**Allegation L**).

On February 26, 2016, Carmine Malandro, the IT director at the New York City Department of Education, responded to a subpoena for video footage, advising via fax that recording equipment at Elizabeth Blackwell Middle School had overheated and malfunctioned. As such, there is no video footage regarding this incident.

This case was originally assigned to Inv. Christopher Conway, and was reassigned to Inv. Abigail Shuster on April 11, 2016, for closure.

Mediation, Civil and Criminal Histories

- During her sworn interview on January 25, 2016, mediation was presented to § 87(2)(b) as an alternative way to resolve her complaint, but she rejected it for herself and § 87(2)(b) § 87(2)(b).
- A FOIL request returned by the Office of the New York City Comptroller advised that as of March 3, 2016, no notice of claim has been filed regarding this case (BR 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB History

- This is the first complaint filed by § 87(2)(b) with the CCRB and the first in which § 87(2)(b) is listed as a victim (BR 9).
- During his 10-year tenure with the NYPD, PO Cruz has been the subject of three previous CCRB allegations, involving one previous case, which resulted in no substantiated allegations. He is the subject of one additional allegation associated with CCRB case number 201601124, which is currently under investigation. § 87(2)(g)
- During his 22-year tenure with the NYPD, Sgt. Demarco has been the subject of nine previous CCRB allegations involving five cases which resulted in no substantiated allegations. § 87(2)(g) § 87(2)(g), § 87(4-b)
- This is PO Contreras's first CCRB complaint during his five-year tenure with the NYPD. § 87(2)(g), § 87(4-b)
- This is PO Worrell's first CCRB complaint during his five year tenure with the NYPD.

Potential Issues: Attempts To Contact Other Victims

§ 87(2)(b) stated that with her during this incident were her friend § 87(2)(b) and § 87(2)(b) s two friends, § 87(2)(b) and an individual she knew as § 87(2)(b) provided § 87(2)(b) mother's phone number to the undersigned, but she had no contact information to provide for § 87(2)(b) or for § 87(2)(b). On January 29, 2016, a phone call was placed to that phone number, and § 87(2)(b) § 87(2)(b) identified herself as § 87(2)(b) mother, and provided his cell phone and home address (but not his age). Between February 1, 2016, and February 16, 2016, five phone calls were made to § 87(2)(b) and two letters were mailed to him. In a phone call on February 2, 2016, § 87(2)(b) confirmed it was him, stated he could not talk, but scheduled an interview for February 11, 2016, which he missed without calling in advance to reschedule. A missed appointment letter was mailed to § 87(2)(b) and it was not returned by the United States Postal Service. As of the date of this report, § 87(2)(b) has made no further attempts to contact the CCRB.

On February 4, 2016, LexisNexis and CLEAR database searches were conducted for § 87(2)(b) and negative results were returned. An NYPD Booking, Arraignment, and Disposition System database search was conducted for § 87(2)(b) January 28, 2016, and negative results were returned.

The individual whom § 87(2)(b) knew as § 87(2)(b) was listed as "§ 87(2)(b) § 87(2)(b)" in PO Cruz's memo book entries. On February 16, 2016, LexisNexis and CLEAR database searches were conducted for a "§ 87(2)(b) § 87(2)(b)" and negative results were returned. An NYPD Booking, Arraignment, and Disposition System database search, conducted on April 13, 2016, revealed one previous arrest for § 87(2)(b) with the same date of birth as the individual listed in PO Cruz's memo book, but the arrest was sealed. On April 13, 2016, a Lexis Nexis/CLEAR database search was conducted for a "§ 87(2)(b) or § 87(2)(b)" yielding no results. CTS database searches were performed on April 5, 2016, and there were no results for § 87(2)(b) or § 87(2)(b).

CLEAR and LexisNexis searches conducted for § 87(2)(b) § 87(2)(b) returned 464 and 623 results respectively. As his sister, § 87(2)(b) could not provide the investigator with an age, date of birth, or city of residency other than the state of Florida, these results could not be sufficiently narrowed in order to locate the § 87(2)(b) § 87(2)(b) involved in this incident.

Searches of the NYC Department of Correction's Inmate Lookup database, most recently on April 18, 2016, yielded no results for incarcerated individuals named § 87(2)(b) § 87(2)(b)

or § 87(2)(b) § 87(2)(b)

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that all three officers – Sgt. Demarco, PO Cruz, and PO Contreras – participated in frisking and searching § 87(2)(b) and § 87(2)(b) however, she could not describe which officer performed these actions to which civilian. As discussed, statements were unable to be obtained from § 87(2)(b) and § 87(2)(b) While PO Cruz acknowledged frisking § 87(2)(b) and § 87(2)(b) neither he nor any other officer acknowledged frisking or searching § 87(2)(b) § 87(2)(g)

Findings and Recommendations

Allegation Not Pled:

- **Abuse of Authority – Stop:** It is undisputed that § 87(2)(b) and her friends were engaged in the conduct for which they were stopped and ultimately summonsed by the officers. § 87(2)(g)

Allegation A—Discourtesy: At 97th Avenue and 93rd Street in Queens, Police Officer Alex Cruz spoke discourteously to § 87(2)(b) and

Allegation B— Discourtesy: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco spoke discourteously to § 87(2)(b) and § 87(2)(b)

Allegation C— Discourtesy: At 97th Avenue and 93rd Street in Queens, Police Officer Erik Contreras spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that PO Cruz approached her, § 87(2)(b) and § 87(2)(b) saying, “Give me your fucking IDs. Get the fuck up.” Moments later, Sgt. Demarco and PO Contreras entered the playground and allegedly repeated this language, saying, “Give me your fucking IDs. Get the fuck up.”(BR 1).

All three officers denied addressing § 87(2)(b) and her friends in a profane manner at any point during the incident (BR 3-5).

Due to § 87(2)(b) lack of cooperation and the unavailability of § 87(2)(b) and § 87(2)(b) the undersigned was unable to obtain additional civilian testimony.

§ 87(2)(g)

Allegation E—Abuse of Authority: At 97th Avenue and 93rd Street in Queens, Police Officer Alex Cruz frisked § 87(2)(b)

PO Cruz testified that he frisked § 87(2)(b) and § 87(2)(b) on their backs, arms, torsos, and legs shortly after obtaining their identification. PO Cruz reported having asked § 87(2)(b) and § 87(2)(b) if they “had anything” on them, and described § 87(2)(b) and § 87(2)(b) nonverbally consenting to the frisk by raising their arms over their heads. PO Cruz denied seeing any bulges, and specified that both § 87(2)(b) and § 87(2)(b) were wearing bulky coats. PO Cruz stated that he did not believe that § 87(2)(b) and § 87(2)(b) were armed; he only stated that there were “lots of knives in the area” (BR 3).

§ 87(2)(b) recalled seeing officers frisk § 87(2)(b) and § 87(2)(b) but could not specifically describe which officer was doing what to which civilian (BR 1). As discussed, § 87(2)(b) and § 87(2)(b) did not provide statements to the CCRB.

§ 87(2)(g)

§ 87(2)(g)

Allegation F – Abuse of Authority: At 97th Avenue and 93rd Street in Queens, an officer frisked § 87(2)(b) Seemanagal.

Allegation G – Abuse of Authority: At 97th Avenue and 93rd Street in Queens, an officer searched § 87(2)(b)

§ 87(2)(b) alleged that § 87(2)(b) was frisked and searched. However, as discussed in the Officer Identification section above, § 87(2)(b) could not identify which officers frisked and searched which civilians and none of the officers acknowledged frisking or searching § 87(2)(b).

§ 87(2)(g)

Allegation H—Abuse of Authority: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco frisked § 87(2)(b)

Allegation I—Abuse of Authority: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco searched § 87(2)(b)

§ 87(2)(b) alleged that after providing her identification, Sgt. Demarco frisked her torso over her jacket, and down her pants. Sgt. Demarco also removed items out of her jacket pockets, inspected them, and put them back. § 87(2)(b) was offended by this contact, as she is a female and Sgt. Demarco was a male, and this was the primary reason she filed this complaint (BR 1).

Sgt. Demarco denied frisking or searching any civilian, and denied that he authorized any of his officers to do so. PO Cruz did not see either of his partners frisk or search any civilian. PO Contreras could not recall if he or any of the officers at the scene conducted a frisk (BR 3-5).

§ 87(2)(g)

Allegation J—Abuse of Authority: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco searched § 87(2)(b)

§ 87(2)(b) alleged that after Sgt. Demarco frisked her, he then picked up § 87(2)(b) backpack, opened it, and looked through it (BR 1).

Sgt. Demarco did not recall seeing any backpack on scene, and denied searching any backpack (BR 4).

PO Cruz acknowledged interacting with § 87(2)(b) backpack (though he believed that it actually belonged to § 87(2)(b) and he only admitted to frisking the backpack, not searching it (BR 3).

PO Contreras could not recall whether Sgt. Demarco, or any other officer, frisked or searched a backpack (BR 5).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation K—Abuse of Authority: At 97th Avenue and 93rd Street in Queens, Sergeant Joseph Demarco refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Demarco told her, “You get a free pass,” after completing the search and frisks. She did not know why she had not been summonsed, but left the area and placed a call to her mother, § 87(2)(b) who instructed § 87(2)(b) to return to the officer and obtain his name, shield number, and command. When she returned, the officers were reportedly in the process of summonsing § 87(2)(b) and § 87(2)(b). She allegedly approached Sgt. Demarco and asked him for his name and shield number, and Sgt. Demarco allegedly did not respond to the request and instead asked her for her identification again and issued her a summons for § 87(2)(b) (BR 1).

§ 87(2)(b) was not present for this incident, and though she spoke to her daughter on the telephone, she did not hear any part of the interaction with the officers. She corroborated § 87(2)(b)'s account of their first telephone call, in which she instructed her daughter to obtain the officer's information. § 87(2)(b) also testified that § 87(2)(b) called her over the telephone a second time, immediately after being issued the summons, and reported that the officer had refused to provide his name, shield number, and command (BR 2).

All three officers denied § 87(2)(b) requested any of the officers' names or shield numbers. According to the officers' statements, § 87(2)(b) was summonsed at the same time as § 87(2)(b) and § 87(2)(b) they denied interacting with § 87(2)(b) a second time after allowing her to leave (BR 3-5).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

PO Cruz and Sgt. Demarco's memo books both denote the summonsing of § 87(2)(b) and § 87(2)(b) (in that order) in separate entries, ranging from 4:40pm until 4:50pm. § 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]

After receiving her summons, § 87(2)(b) went to the 102nd Precinct stationhouse with § 87(2)(b) and § 87(2)(b)'s stepbrother, § 87(2)(b). She spoke with PO Worrell regarding the summons that § 87(2)(b) had received. No other officers or civilians witnessed the conversation between them. § 87(2)(b) alleged that she informed PO Worrell she intended to make a complaint against the officers, but PO Worrell told her she had to fight it in court, and that the officers had the right to search her daughter. PO Worrell allegedly did not process the complaint. § 87(2)(b) intended to make (BR 2).

§ 87(2)(b) could not hear most of the conversation, but recalled that PO Worrell said he could not help and that she had to fight it in court (BR 1). § 87(2)(b) § 87(2)(b) lives in Florida, and § 87(2)(b) was not in contact with him and therefore was unable to provide any of his contact information; as such, his statement could not be obtained.

PO Worrell recalled this conversation in detail, and denied that § 87(2)(b) ever asked him about filing a civilian complaint. PO Worrell did advise them to fight the summons in court, after which § 87(2)(b) and her family got frustrated and walked out (BR 6).

§ 87(2)(g) [REDACTED]

Squad: 15

Investigator: _____
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date